



Covered Materials & Producer Definitions: **California**



Table of Contents:

Introduction	p. 4
California Definitions	p. 6
Categorically Excluded Materials in California	p. 21
Exempt Producers in California	p. 40
Small and Independent Producers	p. 42

Version History

Version	Published Date	Updates
Version 1.0	Sept 22, 2025	Initial release
Version 1.1	Sept 24, 2025	Minor formatting update

Introduction

[PRC §§ 42040–42084](#): Plastic Pollution Prevention and Packaging Producer Responsibility Act

[Plastic Pollution Prevention and Packaging Producer Responsibility Act Proposed Regulation Text \("Draft Regulations"\)](#) As provided in the Draft Regulations, "All text is added text to Title 14, Division 7 of the California Code of Regulations" The information provided in this guidance document is designed to help businesses identify the covered materials and the responsible producer for those materials in California under the "Plastic Pollution Prevention and Packaging Producer Responsibility Act" (PRC §§ 42040–42084) and the formal "Proposed Regulation Text" that CalRecycle published on August 22, 2025. Please note that regulations have not yet been promulgated nor codified into the California Code of Regulations (CCR) and a draft Program Plan is not expected until 2026. In the meantime, producers should consult with their legal counsel on whether they fall within the statutory and proposed regulatory definitions below to determine if they are a producer in California. This document will be updated once regulations are promulgated, and producers will be notified.

The following are key dates that California producers should be aware of:

- California producers were required to register with CAA by **September 5, 2025**. Producers who have not yet registered can do so on [CAA's registration page](#).
 - When producers register with CAA, they will be asked to sign a Producer Participant Agreement and state addendum prior to reporting. Producer registration information can be found on [CAA's registration page](#).
- California producers are asked to submit their supply reports by **November 15, 2025**. The purpose of this report is to establish a supply baseline from which to measure source reduction as required under PRC §§ 42040–42084. This supply report will not be used as a basis to levy fees.

The information provided in this guidance document is for informational purposes only and does not constitute legal advice. CAA is not a law firm and does not provide legal advice or recommendations. This guidance is not a substitute for professional legal advice. Readers should consult their legal counsel before acting on any information contained in this guidance document. CAA expressly disclaims all liability for actions taken or not taken based on the contents of this guidance document.



 Producer.Support@circularaction.org

 www.circularactionalliance.org

Determining Your Obligations in California

There are two primary questions businesses need to ask to help determine if they are obligated under PRC §§ 42040–42084 and the Draft Regulations:

- Is the material associated with my products covered by California’s packaging EPR law?
- Is my business the responsible producer for those covered materials?

EPR laws for packaging and paper vary from state to state but are generally designed to apply to single use packaging, paper, and some disposable products. As a first step in the process of identifying whether your company has obligations under an EPR law, companies should review with their legal counsel the definitions of each material type to determine whether the materials associated with the products placed in the market in California are subject to California’s packaging EPR law. Second, companies should review the producer hierarchy associated with the covered materials to determine if their business is the obligated producer for those materials.

California has exempted specific materials and has also exempted specific producers from the obligations of their state EPR laws. Those exemptions are outlined in Parts 3 and 4 of this guidance document.

When reviewing the definitions below, producers should note that in California, the ‘consumer’ is the end user of a covered material inclusive of individual consumers who purchase or are provided products for their own personal use, **as well as businesses which are also the end user of a covered product.**

California Definitions

Producers can refer to a companion guidance document (“Definition of Producer: California”) which is available on our producer resource center webpage and includes the definitions of producer and associated terms to assist producers in identifying the responsible party for covered materials in California. **PRC section 42041(e)(1)** “Covered material” means both of the following:

- (A) Single-use packaging that is routinely recycled, disposed of, or discarded after its contents have been used or unpackaged, and typically not refilled or otherwise reused by the producer.
- (B) Plastic single-use food service ware, including, but not limited to, plastic-coated paper or plastic-coated paperboard, paper or paperboard with plastic intentionally added during the manufacturing process, and multilayer flexible material. For purposes of this subparagraph, “single-use food service ware” includes both of the following:
 - (i) Trays, plates, bowls, clamshells, lids, cups, utensils, stirrers, hinged or lidded containers, and straws.
 - (ii) Wraps or wrappers and bags used in the packaging of food offered for sale or provided to customers by food service establishments

Draft Regulations Section 18980.1(a)(17) Definitions

(B) The terms “product that uses covered material” and “product using the covered material” refer to a good that uses covered material. A good uses covered material if its packaging is covered material or if the good itself is plastic single-use food service ware and thus constitutes covered material. Empty packaging materials not yet used by a good are not “single-use packaging” or otherwise “covered material” under the Act, such that a person is not a producer merely because they manufacture, sell, offer for sale, or distribute such materials.

(C) When a product is offered for sale, sold, distributed, or imported, the covered material used by the product is also considered to be offered for sale, sold, distributed, or imported.

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
Packaging PRC 42041(s) Means any separable and distinct material component used for the containment, protection, handling, delivery, or presentation of goods by the producer for the user or consumer, ranging from raw materials to processed goods. "Packaging" includes, but is not limited to, all of the following: (1) Sales packaging or primary packaging intended to provide the user or consumer the individual serving or unit of the product and most closely containing the product, food, or beverage. (2) Grouped packaging or secondary packaging	Product physically provided to the consumer on the premises of a retail seller or other distributor Section 18980.1(a)(17) (C) When a product is offered for sale, sold, distributed, or imported, the covered material used by the product is also considered to be offered for sale, sold, distributed, or imported. (D) If the product is physically provided to the consumer on the premises of a retail seller or other distributor where it is sold or distributed, only packaging associated with the product before the point of sale or	PRC 42041(w) (1) "Producer" means a person who manufactures a product that uses covered material and who owns or is the licensee of the brand or trademark under which the product is used in a commercial enterprise, sold, offered for sale, or distributed in the state. (2) If there is no person in the state who is the producer for purposes of paragraph (1), the producer of the covered material is the owner or, if the owner is not in the state, the exclusive licensee of a brand or trademark under which the covered product using the covered material is used in a commercial enterprise, sold, offered for sale, or distributed in the state. For purposes of this subdivision, a licensee is a person holding the exclusive right to use a trademark or brand in the state in connection with the manufacture, sale, or distribution of the product packaged in or made from the covered material. (3) If there is no person in the state who is the producer for purposes of paragraph (1) or (2), the producer of the covered material is the person who sells, offers for sale, or distributes the product that uses the covered material in or into the state. (4) "Producer" does not include a person who produces, harvests, and packages an agricultural commodity on the site where the agricultural commodity was grown or raised.

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
intended to bundle, sell in bulk, brand, or display the product. (3) Transport packaging or tertiary packaging intended to protect the product during transport. (4) Packaging components and ancillary elements integrated into packaging, including ancillary elements directly hung onto or attached to a product and that perform a packaging function, except both of the following: (A) An element of the packaging or food service ware with a de minimis weight or volume, which is not an independent plastic component, as	distribution and before the initial physical display of the product to the consumer shall be considered the product's packaging.	(5) For purposes of this chapter, the sale of covered materials shall be deemed to occur in the state if the covered materials are delivered to the purchaser in the state. Section 18980.1(a)(17) "Producer" has the same definition as provided in subdivision (w) of section 42041 of the Public Resources Code. (A) "Person" means an individual, firm, limited liability company, association, partnership, public or private corporation, or any other legal entity. Section 18980.1.1. Producer Identification (a) For purposes of paragraphs (1) and (2) of subdivision (w) of section 42041 of the Public Resources Code only, a person is in the state if the person is subject to the jurisdiction of California courts pursuant to section 410.10 of the Code of Civil Procedure with respect to the Act and any of the following is true: (1) Service of summons, excluding service in a manner requiring a court order, on the person may be completed in the state pursuant to sections 413.10 through 417.40 of the Code of Civil Procedure (Article 1 of Chapter 4 of Title 5 of Part 2 of the Code of Civil Procedure) or section 2110 of the Corporations Code. (2) The person consents to being considered in the state, being served notices and accusations by any means chosen by the Department pursuant to section 18980.13.3 and being

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
determined by the department. (B) A component or element that is an integral part of the product, if all components or elements of the product are intended to be consumed or disposed of together. (ai) "Single use" means conventionally disposed of after a single use or not sufficiently durable or washable to be, or not intended to be, reusable or refillable. 18980.1(a)(17) (B)The terms "product that uses covered material" and		personally subject to the jurisdiction of California courts. To be considered in the state, such person must be registered as a producer pursuant to section 18980.10 and must, upon demand, confirm the foregoing consent in writing, such as by affidavit or written agreement, and through conduct consistent with such consent. Conduct consistent with such consent includes responding to an accusation, filing a pleading, or otherwise appearing in a legal proceeding in the state. (b) One brand or trademark shall be designated as the one referred to in paragraphs (1) and (2) of subdivision (w) of section 42041 of the Public Resources Code, and the person deemed to be the producer of the covered material used by goods shall be identified according to subdivisions (c), (d), and (e), if possible. (c) For covered material other than food service ware, the producer shall be determined in accordance with this subdivision. (1) Subject to subdivision (e), the designated brand or trademark shall be one used with goods when they are first sold or distributed along with covered material or used with such initial sale or distribution, regardless of where such use occurs. The person who manufactured the goods is the producer, provided that the person is in the state and either owns the designated brand or trademark or is licensed to manufacture the goods. To be the producer, the licensee must have the legal right to use the brand or trademark on

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
“product using the covered material” refer to a good that uses covered material. A good uses covered material if its packaging is covered material or if the good itself is plastic single-use food service ware and thus constitutes covered material. Empty packaging materials not yet used by a good are not “single-use packaging” or otherwise “covered material” under the Act, such that a person is not a producer merely because they manufacture, sell, offer for sale, or distribute such materials. (C) When a product is offered for sale, sold, distributed, or imported, the covered material used by the product is also considered to be offered		the goods in connection with manufacturing the goods and be entitled to be the only person with such right in the state or in a subregion of the state. (2) If the person who manufactured the goods is not the producer pursuant to paragraph (1), and the owner of the designated brand or trademark is in the state, that owner is the producer. (3) If there is no producer pursuant to paragraphs (1) and (2) of this subdivision, a licensee of the designated brand or trademark shall be identified as the producer, if possible, as follows: (A) The licensee must be in the state. (B) The licensee must have the legal right to use the brand or trademark or authorize others to do so, whether on the goods or with their sale, offer of sale, or distribution, and be entitled to be the only person with such right in the state or in a subregion of the state. Such a licensee is the producer of the covered material used by the goods sold, offered for sale, or distributed in the state pursuant to their authority over the brand or trademark. (C) Notwithstanding subparagraph (B), a person that otherwise would be the producer under this paragraph is not the producer if it acquired the right to use the brand or trademark under an agreement, such as a sublicense or

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
for sale, sold, distributed, or imported.		franchise agreement, with another person in the state. That other person is the licensee for purposes of this paragraph and is the producer of the covered material used by the goods sold, offered for sale, or distributed pursuant to such an agreement. (4) This subdivision does not apply to covered material packaging added to a good by a person other than the owner or licensee of the brand or trademark or someone acting on behalf of the owner or licensee. The producer of such covered material shall be determined as described in subdivision (f).
	Packaging item sold electronically through the internet	PRC 42041(ae)(2) (2) A person who sells covered material as a third-party seller using an online marketplace as described in paragraph (3) shall be considered the retailer or wholesaler for purposes of such transactions. The owner or operator of the online marketplace shall not be considered the retailer or wholesaler for such sales. (3) For purposes of this subdivision, “online marketplace” means a consumer-directed, electronically accessed platform in which all of the following are true: (A) The platform includes features that enable third-party sellers to sell consumer products directly to consumers in the state without the owner or operator of the platform

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
		involved in the transaction other than by providing order processing, payment, storage, shipping, or delivery services. (B) Third-party sellers use the features described in subparagraph (A) to sell directly to consumers in the state, with title to the consumer product passing from the third-party sellers directly to consumers and not being held by the owner or operator of the online marketplace at any point during the transaction, including upon receipt of the order and throughout the order fulfillment process. (C) Except as provided by subparagraph (E), the owner or operator of the platform does not directly or indirectly control the covered material used in packaging and shipping of a consumer product in this state. (D) The person or entity operating the platform has a contractual or similar relationship with consumers governing their use of the platform to purchase consumer products. (E) Third-party sellers agree, pursuant to the platform's terms and conditions or other enforceable agreement, that they will not use the platform to offer for sale, sell, or distribute into the state covered material that does not meet the requirements of this chapter.

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
Food Service Ware PRC 42041(e)(1) (B) Plastic single-use food service ware, including, but not limited to, plastic-coated paper or plastic-coated paperboard, paper or paperboard with plastic intentionally added during the manufacturing process, and multilayer flexible material. For purposes of this subparagraph, "single-use food service ware" includes both of the following: (i) Trays, plates, bowls, clamshells, lids, cups, utensils, stirrers, hinged or lidded containers, and straws. (ii) Wraps or wrappers and bags used in the packaging of food offered for sale or		PRC 42041(w) (1) "Producer" means a person who manufactures a product that uses covered material and who owns or is the licensee of the brand or trademark under which the product is used in a commercial enterprise, sold, offered for sale, or distributed in the state. (2) If there is no person in the state who is the producer for purposes of paragraph (1), the producer of the covered material is the owner or, if the owner is not in the state, the exclusive licensee of a brand or trademark under which the covered product using the covered material is used in a commercial enterprise, sold, offered for sale, or distributed in the state. For purposes of this subdivision, a licensee is a person holding the exclusive right to use a trademark or brand in the state in connection with the manufacture, sale, or distribution of the product packaged in or made from the covered material. (3) If there is no person in the state who is the producer for purposes of paragraph (1) or (2), the producer of the covered material is the person who sells, offers for sale, or distributes the product that uses the covered material in or into the state. (4) "Producer" does not include a person who produces, harvests, and packages an agricultural commodity on the site where the agricultural commodity was grown or raised.

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
provided to customers by food service establishments. Section 18980.1(a)(8) Food service ware” means the goods identified in subparagraphs (A) and (B). Plastic single-use food service ware is covered material and shall not be considered “packaging” for purposes of this chapter. (A) Trays, plates, bowls, clamshells, lids, cups, utensils, stirrers, hinged or lidded containers, straws, and other goods typically used with food, provided that such goods are intended or marketed to be used, or are customarily used, in the act of consuming food or providing to consumers food or beverages that		(5) For purposes of this chapter, the sale of covered materials shall be deemed to occur in the state if the covered materials are delivered to the purchaser in the state. Section 18980.1(a)(17) “Producer” has the same definition as provided in subdivision (w) of section 42041 of the Public Resources Code. (A) “Person” means an individual, firm, limited liability company, association, partnership, public or private corporation, or any other legal entity. Section 18980.1.1 Producer Identification (a) For purposes of paragraphs (1) and (2) of subdivision (w) of section 42041 of the Public Resources Code only, a person is in the state if the person is subject to the jurisdiction of California courts the Act and any of the following is true: (1) Service of summons, excluding service in a manner requiring a court order, on the person may be completed in the state pursuant to sections 413.10 through 417.40 of the Code of Civil Procedure (Article 1 of Chapter 4 of Title 5 of Part 2 of the Code of Civil Procedure) or section 2110 of the Corporations Code. (2) The person consents to being considered in the state, being served notices and accusations by any means chosen

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
require no further preparation or packaging prior to consumption. A good exclusively marketed and labeled as not intended for such uses shall not be considered customarily put to such use. To be a food service ware item, the good must either necessarily directly contact food when used to serve or consume food or be designed specifically for use in conjunction with food service ware items when the items are used to serve or consume food. Examples of goods designed specifically for such use include a cup sleeve or cup tray used with cups that contact beverages, trays used with liners that contact food, or a lid or cover that fits securely		by the Department pursuant to section 18980.13.3 and being personally subject to the jurisdiction of California courts. To be considered in the state, such person must be registered as a producer pursuant to section 18980.10 and must, upon demand, confirm the foregoing consent in writing, such as by affidavit or written agreement, and through conduct consistent with such consent. Conduct consistent with such consent includes responding to an accusation, filing a pleading, or otherwise appearing in a legal proceeding in the state. (b) One brand or trademark shall be designated as the one referred to in paragraphs (1) and (2) of subdivision (w) of section 42041 of the Public Resources Code, and the person deemed to be the producer of the covered material used by goods shall be identified according to this subdivisions (c), (d), and (e), if possible. Section 18980.11(c)(4) (d) For food service ware, the producer shall be determined in accordance with this subdivision (1) Subject to subdivision (e), the brand or trademark referred to in paragraphs (1) and (2) of subdivision (w) of section 42041 of the Public Resources Code shall be one used with the food service ware when they are first sold or distributed or used with such initial sale or distribution, regardless of where such use occurs. The person who

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
atop a tray that touches food. An item is not food service ware pursuant to this subparagraph merely because it may be used to contain, store, handle, protect, or prepare food. (B) Wraps, wrappers, and bags marketed, designed, or intended to be used in the manner described in clause (ii) of subparagraph (B) of paragraph (1) of subdivision (e) of section 42041 of the Public Resources Code: “used in the packaging of food offered for sale or provided to customers by food service establishments”. For purposes of section 42041 of the Public Resources Code: (i) A food service establishment is a retail		manufactured the food service ware is the producer, provided that the person is in the state and either owns the designated brand or trademark or is licensed to manufacture the food service ware. To be the producer, the licensee must have the legal right to use the brand or trademark on the food service ware in connection with manufacturing the food service ware and be entitled to be the only person with such right in the state or in a subregion of the state. (2) If the person who manufactured the goods is not the producer pursuant to paragraph (1), and the owner of the designated brand or trademark is in the state, that owner is the producer. (3) If there is no producer pursuant to paragraph (1) or (2) of this subdivision, a licensee of the designated brand or trademark shall be identified as the producer, if possible, as follows: (A) The licensee must be in the state. (B) The licensee must have the legal right to use the brand or trademark or authorize others to do so, whether on the food service ware or with its sale, offer of sale, or distribution, and be entitled to be the only person with such right in the state or in a subregion of the state. Such a licensee is the producer of the covered material used by the food service ware sold,

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
business that operates at a physical location, whether permanent or nonpermanent, and serves prepared food for human consumption, regardless of whether the food is consumed on or off the operation's premises, and regardless of whether there is a charge for the food. (ii) Packaged food products that were not packaged by the operation and are not removed from their packaging by the operation, such as prepackaged, sealed food that was mass produced by a third party, shall not be considered food offered to consumers by a food service establishment. (iii) Notwithstanding the foregoing, bags provided to		offered for sale, or distributed in the state pursuant to their authority over the brand or trademark. (C) Notwithstanding subparagraph (B), a person that otherwise would be the producer under this paragraph is not the producer if it acquired the right to use the brand or trademark under an agreement, such as a sublicense or franchise agreement, with another person in the state. That other person is the licensee for purposes of this paragraph and is the producer of the covered material used by the food service ware sold, offered for sale, or distributed pursuant to such an agreement. (e) If there are multiple brands or trademarks that may be designated for purposes of subdivisions (c) or (d), one of them shall be designated in accordance with this subdivision. (1) If the covered material is food service ware, the brand or trademark directly associated with (as described in subparagraph (E) of paragraph (17) of subdivision (a) of section 18980.1) food or food service shall be designated. Otherwise, the designated brand or trademark shall be the one owned or licensed by the manufacturer or licensee, provided that such person satisfies the requirements of paragraph (1) of subdivision (c) or paragraph (1) of subdivision (d) for being a producer of either food service ware or packaging.

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
customers by a business that is a “store” pursuant to Chapter 5.3 of Part 3 of Division 30 of the Public Resources Code (commencing with section 42280) shall not be considered bags used in the packaging of food, provided such bags are precheckout bags (as defined in that Chapter) or are provided to customers at the point of sale. For purposes of this clause, paragraphs (1) and (2) of subdivision (g) of section 42280 of the Public Resources Code shall not apply, such that retail establishments cannot be excluded from the definition of “store” based on their gross annual sales or square footage of the retail space.		(2) If no brand or trademark can be designated pursuant to paragraph (1) of this subdivision, the brand or trademark most prominently used with or on the goods or, if the covered material is food service ware, with or on the food service ware shall be designated. (3) If no brand or trademark can be designated pursuant to paragraphs (1) and (2), the brand or trademark most prominently used with the initial sale or distribution of the goods, or, if the covered material is food service ware, with or on the food service ware shall be designated. (4) For purposes of this subdivision, if any of the brands or trademarks are owned by the same person or used by the same licensee, the combination of them shall be considered a single brand or trademark. (5) Notwithstanding paragraphs (1) through (4) of this subdivision, the owners of the brands or trademarks may agree among themselves to designate one of the brands or trademarks, provided that the owner or a licensee of that brand or trademark otherwise satisfies the criteria to be the producer under this subdivision. (f) If no producer can be identified pursuant to subdivisions (c), (d), or (e), the producer of covered material used by a good shall be identified according to paragraph (3) of subdivision (w) of section 42041 of the Public Resources Code. What constitutes such

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
Section 18980.1(27) (C) A packaging or food service ware item shall be considered conventionally disposed of after a single use if it is not reusable or refillable according to paragraph (25) of this subdivision and paragraphs (1) or (2) of subdivision (af) of section 42041 of the Public Resources Code.		covered material shall be evaluated as of the time a person sells, offers for sale, or distributes the good, and the person is the producer only with respect to covered material items for which there was not already a producer at such time. For example, for a branded good that is packaged using covered material and is sold or distributed in the state: (1) If the brand owner or licensee is in the state, it is the producer of all covered material items used by the good when the good is sold or distributed by the owner or a person acting on the behalf of the owner or licensee. It is the producer, for example, of the sales packaging or primary packaging described in paragraph (1) of subdivision (s) of section 42041 of the Public Resources Code, as well as any additional covered material items, such as transport or tertiary packaging, used by the good before it is received by any person who subsequently sells or distributes it. If a person subsequently sells or distributes the good using additional covered material packaging (e.g., transport or tertiary packaging), that person is the producer of the additional covered material items. That person is not the producer of the packaging items for which the brand owner was already the producer when the person received the product. (2) If there is no brand owner or licensee in the state, the person who first sells or distributes the good in the state is

Covered Material Type	Specific Scenario	Producer Hierarchy (Act and Draft Regulation)
		the producer of all covered material items, including any covered material items added by such person, used by the good at the time of such sale or distribution. (3) If a wholesaler or retailer in the state subsequently obtains the good and causes it to use additional items of covered material packaging, the wholesaler or retailer is the producer of such additional items, and the producer of the other covered material items used by the good is either the person identified according to subdivisions (c) or (d), or, if there is no such person, or the person identified in paragraph (2) of this subdivision.

Categorically Excluded Materials in California

Product Category		California
Statutory and Draft Regulatory Reference: <i>The clauses below define materials not included in the definition of covered material from PRC section 42041(e)(2) and as further clarified in Draft Regulations Section 18980.2. Categorically Excluded Materials.</i>		
Section 18980.2 (b) For purposes of subparagraphs (A) through (D) of paragraph (2) of subdivision (e) of section 42041, packaging used for a good or used to contain a good includes primary, secondary, and tertiary packaging. Notwithstanding the foregoing, tertiary packaging	Packaging for Drug, Medical Devices & Nutritional Supplements	PRC 42041(e) (2) Notwithstanding paragraph (1), “covered material” does not include any of the following: (A) Packaging used for any of the following products: (i) Medical products and products defined as devices or prescription drugs, as specified in the Federal Food, Drug, and Cosmetic Act (21 U.S.C. Secs. 321(g), 321(h), and 353(b)(1)). (ii) Drugs that are used for animal medicines, including, but not limited to, parasiticide products for animals. (iii) Products intended for animals that are regulated as animal drugs, biologics, parasiticides, medical devices, or diagnostics used to treat, or administered to, animals under the Federal Food, Drug, and Cosmetic Act (21 U.S.C. Sec. 301 et seq.), the federal Virus–Serum–Toxin Act (21 U.S.C. Sec. 151 et seq.), or the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. Sec. 136 et seq.).

Product Category	California
used for goods not identified in those subparagraphs is covered material regardless of whether the packaging also contains goods identified in those subparagraphs.	(iv) Infant formula, as defined in Section 321(z) of Title 21 of the United States Code. (v) Medical food, as defined in Section 360ee(b)(3) of Title 21 of the United States Code. (vi) Fortified oral nutritional supplements used for persons who require supplemental or sole source nutrition to meet nutritional needs due to special dietary needs directly related to cancer, chronic kidney disease, diabetes, malnutrition, or failure to thrive, as those terms are defined as by the International Classification of Diseases, Tenth Revision, or other medical conditions as determined by the department. Section 18980.2 (a) The following are not covered material: (1) Packaging and other items identified in paragraph (2) of subdivision (e) of section 42041 of the Public Resources Code (4) Packaging used for “devices,” as defined in subsection (h) of section 321 of Title 21 of the United States Code. (5) Packaging used for “drugs,” as defined in subsection (g) of section 321 of Title 21 of the United States Code, that require a prescription pursuant to subsection (b) of section 353 of Title 21 of the United States Code. (6) Packaging for medical products. “Medical products” means products that are “drugs,” as defined pursuant to paragraph (5), that do not require a prescription and satisfy at least one of the following criteria:

Product Category		California
		(A) They are neither “cosmetics,” as defined in subsection (i) of section 321 of Title 21 of the United States Code, nor “soap,” as defined in section 701.20 of Title 21 of the Code of Federal Regulations. (B) They are not a drug solely by virtue of containing a “sunscreen active ingredient,” as defined in section 352.3 of Title 21 of the Code of Federal Regulations.
	Products Regulated by FIFRA	PRC 42041(e) (B) Packaging used to contain products regulated by the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. Sec. 136 et seq.).
	Dangerous, Flammable, Hazardous Products	PRC 42041(e) (C) Plastic packaging containers that are used to contain and ship products that are classified for transportation as dangerous goods or hazardous materials under Part 178 (commencing with Section 178.0) of Subchapter C of Chapter I of Subtitle B of Title 49 of the Code of Federal Regulations. (D) Packaging used to contain hazardous or flammable products classified by the 2012 federal Occupational Safety and Health Administration Hazard Communication Standard (29 C.F.R. 1910.1200).

Product Category		California
	Beverage Containers	PRC 42041(e) (E) Beverage containers subject to the California Beverage Container Recycling and Litter Reduction Act (Division 12.1 (commencing with Section 14500)). Section 18980.2 (c) For purposes of subparagraph (E) of paragraph (2) of subdivision (e) of section 42041, “[b]everage containers subject to the California Beverage Container Recycling and Litter Reduction Act” is defined according to sections 14504 and 14505 of the Public Resources Code and regulations adopted pursuant thereto.
	Agricultural Materials	PRC 42060 (b)(1) The department shall ensure that any regulations adopted pursuant to this chapter consider guidelines and do not conflict with regulations issued by the United States Food and Drug Administration and the United States Department of Agriculture and consider requirements imposed by other California state agencies. (2) Neither the department nor the PRO shall impose any requirement, including, but not limited to, a recycled content requirement, in direct conflict with a federal law or regulation, including, but not limited to, laws or regulations covering tamper-evident packaging pursuant to Section 211.132 of Title 21 of the Code of Federal Regulations, laws or regulations covering child-resistant packaging pursuant to Part 1700 (commencing with Section 1700.1) of Subchapter E of Chapter II of Title 16 of the Code of Federal Regulations, regulations, rules, or guidelines issued by the United States Department of Agriculture or the United States Food and Drug Administration relevant to packaging agricultural commodities, requirements for microbial contamination, structural integrity, or safety of packaging under the Federal Food,

Product Category	California
	Drug, and Cosmetic Act (21 U.S.C. Sec. 301 et seq.), 21 U.S.C. Sec. 2101 et seq., the federal FDA Food Safety Modernization Act (Public Law 111-353), the federal Poultry Products Inspection Act (21 U.S.C. Sec. 451 et seq.), the Federal Meat Inspection Act (21 U.S.C. Sec. 601 et seq.), or the federal Egg Products Inspection Act (21 U.S.C. Sec. 1031 et seq.). Neither the department nor a PRO shall impose a postconsumer recycled content requirement for covered material for fresh produce. (d) In adopting regulations pursuant to this section, the department shall ensure the regulations, and activities conducted in accordance with the regulations, avoid or minimize disproportionate impacts to disadvantaged or low-income communities or rural areas. Section 18980.2 (2) In accordance with paragraphs (1) and (2) of subdivision (b) and with subdivision (d) of section 42060 of the Public Resources Code, packaging or packaging components used by a food or agricultural commodity (without regard to its origin) if it is not reasonably possible to use other packaging or packaging components to comply with regulations, rules, or guidelines issued by the United States Department of Agriculture or the United States Food and Drug Administration. A determination of exclusion pursuant to this paragraph may consider standards to prevent microbial contamination or to maintain the safety or structural integrity of packaging under the Food, Drug, and Cosmetic Act; the FDA Food Safety Modernization Act; the Poultry Products Inspection Act; the Federal Meat Inspection Act; the Egg Products Inspection Act; or other applicable food or agricultural regulations, rules, or guidelines.

Product Category		California
		(A) Any entity that has determined that packaging is not covered material pursuant to paragraph (2) of subdivision (a) shall notify the Department and provide both a specification for the packaging or packaging component and the associated product(s) along with a summary of the basis for its determination. The basis shall identify the specific provision of this Chapter that causes a conflict, cite the conflicting federal regulations, rules, or guidelines, and explain why no reasonably possible alternative packaging or packaging component is available. The Department shall maintain on its website a publicly available electronic database of each such determination that includes the entity name, the specification for the packaging and the associated product(s), and the status of any review by the Department of such determination (B) At any time, the Department may request from an entity additional information supporting that entity's determination, which must be provided within 60 days. If such information is not provided, or if the Department believes the information provided is incomplete or insufficient as a basis for the determination, it shall notify the entity, which shall respond within 60 days. Following review of the information provided by the entity, and any further consultation with the entity and any state or federal government agencies (including the California Department of Food and Agriculture and the California Department of Public Health) that the Department deems advisable, the Department shall determine whether the packaging or packaging component qualifies for the exclusion. If the Department determines that the packaging or packaging component does not qualify for

Product Category		California
		the exclusion, then it shall be considered covered material 180 days following the Department's decision (C) In implementing this paragraph, the Department shall withhold from public disclosure any information that the entity appropriately identifies as trade secrets, subject to the requirements and limitations set forth in section 18980.14.
	Refillable or Reusable Packaging or Food Service Ware* * Please see Appendix A for further information on the requirements for packaging or food service ware item(s) to be considered reusable/refillable	PRC 42041 (af) "Reusable" or "refillable" or "reuse" or "refill," in regard to packaging or food service ware, means either of the following: (1) For packaging or food service ware that is reused or refilled by a producer, it satisfies all of the following: (A) Explicitly designed and marketed to be utilized multiple times for the same product, or for another purposeful packaging use in a supply chain. (B) Designed for durability to function properly in its original condition for multiple uses. (C) Supported by adequate infrastructure to ensure the packaging or food service ware can be conveniently and safely reused or refilled for multiple cycles. (D) Repeatedly recovered, inspected, and repaired, if necessary, and reissued into the supply chain for reuse or refill for multiple cycles.

Product Category	California
	under PRC §§ 42040–42084 or its draft regulations. (2) For packaging or food service ware that is reused or refilled by a consumer, it satisfies all of the following: (A) Explicitly designed and marketed to be utilized multiple times for the same product. (B) Designed for durability to function properly in its original condition for multiple uses. (C) Supported by adequate and convenient availability of and retail infrastructure for bulk or large format packaging that may be refilled to ensure the packaging or food service ware can be conveniently and safely reused or refilled by the consumer multiple times. Section 18980.2 (a) (3) Packaging that is “refillable” or “reusable,” as defined in subdivision (af) of section 42041 of the Public Resources Code. Section 18980.2.1 (a) Packaging and food service ware that meet the requirements to be deemed “reusable” or “refillable” pursuant to this subdivision and subdivision (af) of section 42041 of the Public Resources Code are not covered material. (1) For purposes of this subdivision and subdivision (af) of section 42041 of the Public Resources Code: (A) The term “producer” includes a person that would be a producer pursuant to subdivision (w) of section 42041 of packaging and food service ware items that are reusable or refillable if the items were instead single-use

Product Category	California
	and thus covered material items. The term “producers” also includes retailers and wholesalers that are alleged by the Department to be producers under subdivision (w) of section 42041 of the Public Resources Code because packaging or food service ware they claim to be reusable or refillable do not satisfy the applicable requirements under subdivision (af) of section 42041 and this subdivision. (B) The term “consumer” means the end user of an item, or the last person in the supply chain who acquires and uses an item. For example, a retailer that obtains and uses a covered material item in its business operations, without selling or otherwise further distributing the item, is the consumer of the item. (2) Whether packaging or food service ware is reusable or refillable shall be assessed with respect to the circumstances under which items of the packaging or food service ware are potentially reused or refilled. Packaged goods or food service ware items sold, offered for sale, or distributed under circumstances that cause the good’s packaging or the food service ware items not to satisfy a requirement of subdivision (af) of section 42041 of the Public Resources Code shall be considered covered material, despite otherwise identical items being reusable or refillable because they satisfy the applicable requirements under the different circumstances present where they are sold, offered for sale, or distributed. (3) For purposes of paragraphs (1) and (2) of subdivision (af) of section 42041 of the Public Resources Code: (A) To be considered “reused or refilled by a producer,” packaging or food service ware items must be recovered from users of the items and returned into the supply chain. Subject to the limitations in this subdivision, recovery

Product Category	California
	of items must use any systematic means, such as drop-off locations, return to the original point of sale, and pickup directly from consumers. Packaging or food service ware recovered through systems operated by third parties in the supply chain at the direction of, on behalf of, or otherwise directly or indirectly for a producer shall be considered returned to and reused or refilled by that producer. (B) To be considered “reused or refilled by a consumer,” packaging or food service ware items must be utilized multiple times by consumers for the same good without being recovered from the consumers or returned into the supply chain. (4) For purposes of subparagraph (C) of paragraph (1) of subdivision (af) of section 42041 of the Public Resources Code, “infrastructure to ensure the packaging or food service ware can be conveniently and safely reused or refilled for multiple cycles” is adequate if the requirements of this paragraph are met when an item is offered for sale, sold, or distributed. (A) Unless the item was delivered directly to a consumer, there is at least one location for returning the item that is either: (i) the same location where the item was obtained or delivered; or (ii) within one mile of the location where the original item was obtained and has hours of operation that encompass, at a minimum, the hours of operation of the location where the item was obtained. (B) If the item was ordered via remote means (e.g., Internet, phone, or any method not requiring the purchaser to visit any particular physical location)

Product Category		California
		and was delivered directly to a consumer, the same means must be available for return of the item without requiring travel to a location other than the delivery location. If the item was ordered by visiting a particular physical location, such as a retail store, and was delivered directly to a consumer, return of the item must be able to be arranged via remote means or by visiting that physical location or a location described in clause (ii) of subparagraph (A). (5) For purposes of subparagraph (C) of paragraph (2) of subdivision (af) of section 42041 of the Public Resources Code, the “infrastructure for bulk or large format packaging that may be refilled” is adequate and convenient, such that it enables the original packaging or food service ware item associated with a particular physical good to be conveniently and safely reused or refilled by the consumer multiple times with that good, if it meets the requirements of this paragraph. Meeting the requirements of this paragraph does not necessarily require that the original item be returned or brought back to a store or other location. (A) The good must be readily available (i.e., in stock), in a form that enables the original item to be reused or refilled the with it, at one or more of the following locations: (i) the same physical location where the original item is available; (ii) a physical location within one mile of the location where the original item is available, provided that such location’s hours of operation encompass, at a minimum, the hours of operation of the location where the original item is available;

Product Category		California
		(iii) the website where the original item is available; or (iv) a website to which the consumer is directed, by labeling on the item or by the website specified in clause (iii), for purposes of obtaining the good. (B) Notwithstanding subparagraph (A), this requirement shall be deemed fulfilled with respect to food service ware items that, by their nature, do not require infrastructure for bulk or large format packaging to be conveniently and safely used multiple times. Without limitation, such items include food service ware items used multiple times with food provided directly to consumers by food service establishments, food service ware items not sold or distributed in association with food, and food service ware items that are reused or refilled only at the same location where it is first used. (b) The producer of items sold, offered for sale, or distributed in the state is in violation of the Act if, despite the producer's claim that such items are reusable or refillable for purposes of the Act, the items are not reusable or refillable and selling, offering for sale, or distributing them results in a violation of the Act. Violations may result from conditions that exist throughout the state or conditions present only at certain locations or in geographic regions where the criteria for items to be considered reusable or refillable are not satisfied. (c) Nothing in this section precludes the Department from conducting investigations pursuant to subdivision (a) of section 42080 of the Public Resources Code, including to determine whether packaging or food service ware is covered material.

Product Category		California
	Durable Packaging	PRC 42041(e)(2) (F) Packaging used for the long-term protection or storage of a product that has a lifespan of not less than five years, as determined by the department. Section 18980.2.2 (a) Pursuant to subparagraph (F) of paragraph (2) of subdivision (e) of section 42041 of the Public Resources Code, packaging used for the long-term protection or storage of a good having a lifespan of not less than five years is not covered material. Upon request by the Department, any person claiming not to be subject to the Act with respect to particular packaging on the basis that subparagraph (F) of paragraph (2) of subdivision (e) of section 42041 of the Public Resources Code excludes the packaging from the definition of covered material shall substantiate such a claim. To be excluded, the packaging and the good associated with it must meet the following requirements: (1) The good must be one that is not ingested, irreversibly used, destroyed, or expended through its ordinary use. (2) For the packaging to be considered used for the long-term protection or storage of a good, the packaging must be more commonly retained and used for storage or protection of the good for at least five years, without being discarded, than discarded within five years. Such five-year period shall begin when the good and the packaging are sold or distributed to the user of the good. (3) For the good to be considered to have a lifespan of not less than five years:

Product Category		California
		(A) The good must reasonably be expected to remain usable for at least five years after it is sold or distributed, as determined with respect to the totality of the circumstances, such as the good's marketing, evidence of the actual average duration of use, and the duration of use of similar goods under similar circumstances. This requirement shall be considered satisfied if the good is covered by an express, written five-year warranty with no exclusion for ordinary wear and tear. The warranty must guarantee that the consumer can obtain a full refund or replacement, with no cost for returning the good, if the good does not remain usable at least five years when subject to ordinary or foreseeable use. (B) Use of the good must not be limited by the depletion of nonreplaceable constituent parts, pieces, or other materials, so that the duration of its usability depends on its continued ability to function rather than on how quickly such materials are depleted or discarded. Examples of such goods include, but are not limited to: multi-piece toys sold in containers and designed to be stored in the containers when not in use; tools sold in rigid containers and designed to be stored in the containers when not in use; and board games or puzzles contained in paperboard boxes.
	Paint Products	PRC 42041(e)(2) (G) Packaging associated with paint products, as defined in Section 48701.

Product Category		California
	Exemptions for Certain Materials with Demonstrated Recycling Rates	PRC 42041(e)(2) (H) (i) Covered material for which the producer demonstrates to the department that the covered material meets all of the following criteria: (I) The covered material is not collected through a residential recycling collection service. (II) The covered material does not undergo separation from other materials at a commingled recycling processing facility. (III) The covered material is recycled at a responsible end market. (IV) Until January 1, 2027, the producer annually demonstrates to the department that the material has had a recycling rate of 65 percent for three consecutive years. On and after January 1, 2027, the producer demonstrates to the department that the material has had a recycling rate at or over 70 percent annually, as demonstrated to the department every two years. (ii) If only a portion of the covered material sold in or into the state by a producer meets the criteria of clause (i), only the portion of the covered material that meets the criteria of clause (i) is exempt from this chapter and any portion that does not meet the criteria is a covered material for purposes of this chapter. Section 18980.2.3 (a) For purposes of the exemption from the definition of “covered material” pursuant to subparagraph (H) of paragraph (2) of subdivision (e) of section 42041 of the Public Resources Code:

Product Category	California
	(1) The person seeking to demonstrate that packaging or food service ware is entitled to the exemption shall be considered the “producer” of such packaging or food service ware. (2) The person shall also be considered a producer for purposes of the registration requirements provided in section 18980.10, regardless of whether the Department approves the exemption. (3) As provided in clause (ii) of subparagraph (H) of paragraph (2) of subdivision (e) of section 42041, only the particular packaging or food service ware items that satisfy the requirements of clause (i) of subparagraph (H) of paragraph (2) of subdivision (e) of section 42041 are deemed not covered material. For particular items to satisfy those requirements, all the following must be true: (A) The items are collected by alternative collection programs or programs that collect the items at non-residential sites. (B) After being collected, none of the items are commingled with unsorted material collected by curbside programs. (C) Some or all of the materials originating from the items are accepted by the end market. This requirement must be shown to have been satisfied as of no later than January 1, 2027, and as of every two years thereafter. (4) To satisfy the annual recycling rate requirements of subclause (IV) of clause (i) of subparagraph (H) of paragraph (2) of subdivision (e) of section 42041 of the Public Resources Code, the packaging or food service ware

Product Category		California
		must be shown to have had a recycling rate of at least 65 percent for 2024, 2025, and 2026, and at least 70 percent for 2027 and each year thereafter. The rate for each year shall be determined as of January 1 of the following year, calculated as described in subdivision (b) of section 18980.3.2. The recycling rates shall be with respect only to materials originating from the items that satisfy the requirements of clause (i) of subparagraph (H) of paragraph (2) of subdivision (e) of section 42041, as described in paragraph (3) of this subdivision. (5) The producer must maintain complete, up-to-date data regarding collection and recycling for purposes of demonstrating that the packaging or food service ware items meet the requirements of this section. If complete data for a certain calendar year is not yet available, data for a twelve-month period partially encompassing that year and the preceding year may be used to calculate the recycling rate for that year*. *Producers see section 18980.2.3(b) for steps on applying to the Department for this exemption.
	Exemptions for Certain Covered Materials	PRC 42060(a) (3) (A) The department shall establish a process to identify covered material that, while determined to be single use for purposes of this chapter, presents unique

Product Category	California
	challenges in complying with this chapter. The department may exempt covered material identified pursuant to this subparagraph from this chapter. (B) For any covered material identified as presenting unique challenges and exempted from this chapter under subparagraph (A), the department may at any point develop a plan to phase the covered material into the requirements of this chapter. (4) The department shall establish a process to identify covered material that cannot comply with this chapter for health and safety reasons, or because it is unsafe to recycle. The department may exempt that covered material from this chapter. Section 18980.2.4 (a) Only a PRO or an Independent Producer may submit a request for an exemption pursuant to paragraph (3) of subdivision (a) of section 42060 or paragraph (4) of subdivision (a) of section 42060 of the Public Resources Code. The effect of such an exemption is that exempted covered material may be sold, offered for sale, imported, or distributed regardless of whether the covered material complies with section 42050 or subdivision (i) of section 42057 of the Public Resources Code. The exemption does not affect the status of the single-use packaging or single-use plastic food service ware as covered material and does not otherwise change the obligations of producers with respect to the covered material, such as reporting and payment of PRO fees. (b) A PRO or an Independent Producer registered with the Department pursuant to subdivision (a) of section 18980.10 may request an exemption under this section by

Product Category		California
		electronically submitting an application to the Department. The Department shall only consider an application if it contains all the elements prescribed in this section. (1) A PRO may establish any procedure it deems appropriate for receiving applications prepared in whole or part by a producer or group of producers and deciding whether to submit the applications to the Department. (2) Notwithstanding paragraph (1), a PRO shall not submit to the Department an application unless the PRO has reviewed the application and considers it to meet the standards set forth in this section for approval*. *Producers see Section 18980.2.4(c) for instructions on how to apply for this exemption.

Exempt Producers in California

Businesses that meet the following are exempt from requirements as specified in PRC §§ 42040–42084 and as further clarified in Draft Regulations.

	California
Small Business	PRC 42060(a)(5) The department shall establish a process to exempt from the requirements of this chapter, except for the requirements of subdivision (b) of Section 42050, small producers, small retailers, and small wholesalers based on size, revenue, number of retail locations, and market share, as follows: (A) Subject to subparagraph (B), the department shall exempt producers, retailers, or wholesalers that, in the most recent calendar year, had gross sales of less than one million dollars (\$1,000,000) in the state. (B) If the department determines that exempting a particular small producer, small retailer, or small wholesaler pursuant to subparagraph (A) would hinder the ability of a type of covered material or covered material category from complying with the requirements of this chapter, the department may determine that the particular small producer, small retailer, or small wholesaler will not be exempted from the requirements of this chapter. 18980.1(a)(28) “Small producer” means a producer that has a current exemption on file with the Department pursuant to section 18980.5.2.

	California
Industry Specific Exemptions	42041(2)(w)(4) “Producer” does not include a person who produces, harvests, and packages an agricultural commodity on the site where the agricultural commodity was grown or raised.

Small and Independent Producer Registration

Producers who expect to file a small producer exemption pursuant to Section 18980.5.2 of Draft Regulations with CalRecycle, can do so directly. CAA will not file a small producer exemption application on behalf of the producer.

Producers who meet or expect to meet the definition of an independent producer pursuant to Section 18980.1(a)(10) of Draft Regulations must register with CalRecycle directly. CAA will not file an independent producer application on behalf of the producer.



 Producer.Support@circularaction.org

 www.circularactionalliance.org

Appendix A – Refillable or Reusable Packaging or Food Service ware

Section 18980.2 of the Draft Regulations states that reusable/refillable packaging and food service ware are not covered materials. Packaging and food service ware that does not satisfy all the requirements to be reusable or refillable pursuant to PRC section 42041(a) are a covered material according to Draft Regulations section 18980.2(a)(2), even if identical items exist that do meet the requirements.

For the 2023 source reduction baseline reporting, producers should report all packaging and food service ware as single-use packaging unless they have documented evidence that the packaging and food service ware met all the requirements for being reusable/refillable under PRC §§ 42040–42084 or its Draft Regulations in the 2023 data year. If producers do not have evidence that their reusable/refillable packaging and food service ware met all the requirements to be reusable/refillable in 2023 but did collect evidence to confirm their packaging and food service ware meets the definition post 2023, producers will be able to report this as reusable/ refillable packaging in the 2026 data year and count the material shifted to reuse/refill towards its source reduction targets.

There are two types of reusable/refillable packaging and food service ware.

- Items managed by the producer. Also commonly known as ‘returnables’, these are reusable/refillable items that are returned to the producer between uses for washing, repair (if necessary), and redeployment.
- Items managed by the consumer. Also commonly known as ‘refillables’ where items are refilled-at-home or refilled-on-the-go, these are those items that are maintained by the consumer (e.g., washing, repaired, and redeployed) for the same good.

Requirements for Returnables

Except for reusable food service ware that does not need to be returned to the producer to be reused (e.g., because it is managed onsite), for all other returnables to meet the requirements of being reusable/refillable (i.e., not a covered material) as specified in PRC §§ 42040–42084, the producer must have documented evidence that in 2023:

- The items were explicitly designed and marketed to be utilized multiple times for the same product, or for another purposeful packaging use in a supply chain.
- The items were designed for durability to function properly in their original condition for multiple uses. Evidence of a durability assessment must exist.
- The items were repeatedly recovered, inspected, and repaired, if necessary, and reissued into the supply chain for reuse or refill for multiple cycles.
- A method exists to measure and report on the average number of uses.
- The use and collection of the items was supported by adequate infrastructure to ensure the packaging or food service ware could be conveniently and safely reused or refilled for multiple cycles, including that the collection sites were established to collect these items from consumers using one or more of the following for that item per draft regulation section 18980.2.1(a)(4):
 - located at the point-of-sale,
 - located at a depot within one mile of the point of sale, or
 - (if purchased remotely) returned through the same means as it was delivered to the consumer.

Requirements for Refillables

As stated in PRC section 42051(a) and in Draft Regulations section 18980.2.1(a)(2)(B) for refillables to meet the requirements of being reusable/refillable by the consumer (i.e., not a covered material), the producer must have documented evidence that:

- The packaging was refilled by the consumer for the 'same good'.
- The refillable packaging designed for durability.
- Where packaging or food service ware was refilled through the use of bulk or large format packaging, that the bulk/large format packaging is readily available for sale at or through one of the following:
 - the same physical location as the original item's point of sale,
 - a physical location within one mile of the point of sale,
 - the website where the original item was purchased, or
 - another website labelled directly on the package.